PG DIPLOMA | ADVOCATE LEVEL | CHEAT SHEET

# Cyber Law India

IT Act 2000, BNS / BNSS / BSA, DPDP Act 2023 and Rules 2025, Intermediary Rules, CERT-In Directions, procedure, forums and leading cases on a few printable pages.

**s.43** civil wrong, compensation, no intent needed | **s.66** crime, dishonest or fraudulent intent

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// DISCLAIMER

**Disclaimer:** This cheat sheet is for educational purposes only and is not legal advice. Laws, rules and their interpretation change, and some points may be outdated or incorrect. Items marked `verify` are pending confirmation. Always check the official text on indiacode.nic.in, the Gazette or the relevant judgment, and consult a qualified advocate before acting. CyberWithMadhav and Madhav Pandya accept no liability for actions taken based on this content.

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01 // HEADLINE

# Unauthorised access: civil wrong or crime?

IT ACT 2000 | SECTIONS 43 AND 66

## Entering someone's computer, phone, network or data without permission is unlawful in India. Whether it is a crime depends on intent.

### s.43

CIVIL WRONG

Access, download, virus, damage, disruption, denial of access and similar acts **without the permission of the owner**.

**Remedy:** damages by way of compensation to the person affected. **No intent needed.** Adjudicating Officer (s.46) for claims up to Rs 5 crore; competent court above that.

### s.66

CRIME

Any act referred to in s.43 done **dishonestly or fraudulently** (meanings from IPC ss.24 and 25, now BNS s.2).

**Punishment:** imprisonment up to **3 years**, or fine up to **Rs 5 lakh**, or both. Cognizable and bailable (s.77B); compoundable (s.77A).

An honest, unknowing act is not a s.66 offence, but it can still attract s.43 compensation. Protected systems (s.70) carry up to 10 years.

## How to use this sheet

**TAGS**

CIVIL penalty or compensation
OFFENCE criminal
RULE procedural
~~66A~~ struck down

**VERIFY**

Anything tagged `verify` could not be confirmed from a primary source, or is still unsettled. Check before you rely on it.

**CURRENCY**

New criminal laws from 1 Jul 2024. Jan Vishwas IT Act changes from 30 Nov 2023. DPDP duties, and the omission of s.43A, from about 13 May 2027. IT Rules as amended to 20 Feb 2026. RB-IOS 2026 from 1 Jul 2026.

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02 // TIMELINE

# Timeline of Indian cyber law

**9 Jun 2000** — **Information Technology Act, 2000 (Act 21 of 2000)**
Assent on 9 June 2000; in force from 17 October 2000. Gave legal recognition to electronic records and signatures and created the first cyber contraventions and offences. Based on the UNCITRAL Model Law on Electronic Commerce.

**27 Oct 2009** — **IT (Amendment) Act, 2008 in force (Act 10 of 2009)**
Added Sections 66A to 66F, 67A, 67B, 69A, 72A, 43A and 77A/77B, removed the old compensation cap in Section 43 and moved to the technology-neutral term 'electronic signature'.

**11 Apr 2011** — **SPDI Rules, 2011**
The Reasonable Security Practices and Sensitive Personal Data or Information Rules (G.S.R. 313(E)) under Section 43A: privacy policy, consent, disclosure limits and reasonable security (IS/ISO/IEC 27001 named as one standard). Stays in force with s.43A until DPDP s.44(2) commences (about May 2027).

**24 Mar 2015** — **Shreya Singhal v. Union of India**
Supreme Court struck down Section 66A as violating Article 19(1)(a). Upheld Section 69A blocking. Read down Section 79(3)(b): 'actual knowledge' means a court order or government notification.

**26 May 2017** — **Cyber Appellate Tribunal merged into TDSAT**
Finance Act, 2017 (Section 169) made the Telecom Disputes Settlement and Appellate Tribunal the 'Appellate Tribunal' under the IT Act.

**24 Aug 2017** — **Justice K.S. Puttaswamy v. Union of India**
Nine-judge bench held that privacy is a fundamental right under Article 21 and Part III. The foundation for India's data protection law.

**25 Feb 2021** — **IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021**
G.S.R. 139(E), replacing the 2011 intermediary rules: due diligence, grievance officers, extra duties for significant social media intermediaries and a code for digital news and OTT publishers.

**28 Apr 2022** — **CERT-In Directions under Section 70B(6)**
Report listed cyber incidents to CERT-In within 6 hours, keep ICT logs for a rolling 180 days within India, sync clocks to NIC/NPL NTP. Effective 27 June 2022; extended to 25 September 2022 for MSMEs and some VPN/cloud KYC duties.

**11 Aug 2023** — **Digital Personal Data Protection Act, 2023**
Consent-based processing, Data Principal rights, Data Protection Board of India and penalties of up to ₹250 crore.

**30 Nov 2023** — **Jan Vishwas Act changes to the IT Act**
Jan Vishwas Act 2023 (S.O. 4745(E) dated 31 Oct 2023): s.66A formally omitted; ss.72 and 72A turned into penalties (up to Rs 5 lakh and Rs 25 lakh); 67C(2) and 68(2) became penalties up to Rs 25 lakh; 69B(4) and 70B(7) fines raised to Rs 1 crore; ss.33(2), 44 and 45 penalties raised.

**1 Jul 2024** — **BNS, BNSS and BSA in force**
Bharatiya Nyaya Sanhita, Bharatiya Nagarik Suraksha Sanhita and Bharatiya Sakshya Adhiniyam replaced the IPC, CrPC and Indian Evidence Act.

**1 Jul 2024** — **Electronic evidence: Section 65B becomes BSA Section 63**
Certificate requirement continues. Anvar P.V. (2014) made the 65B certificate mandatory for secondary electronic evidence; Arjun Panditrao Khotkar (2020) confirmed it and overruled Shafhi Mohammad. BSA 63 adds a two-part certificate format in its Schedule. `verify` Whether Anvar and Arjun Panditrao apply unchanged to BSA 63 is still being worked out by courts.

**13 Nov 2025** — **DPDP Rules, 2025 notified**
G.S.R. 846(E). Board provisions in force at once; consent manager rules after 1 year; most duties of Data Fiduciaries after 18 months (around 13 May 2027). DPDP Act Section 44(2), which omits IT Act Section 43A, also starts at 18 months. `verify` 18-month date: 13 or 14 May 2027 depending on day count; a 12-month compression was floated in 2026 but not notified (U1).

**20 Feb 2026** — **IT Rules amended: synthetic media and faster takedowns**
G.S.R. 120(E) of 10 Feb 2026: labels and permanent metadata for 'synthetically generated information'; takedown on actual knowledge cut to 3 hours (from 36), intimate or morphed images to 2 hours (from 24), grievance resolution to 7 days (from 15), Rule 3(1)(b) removal requests to 36 hours (from 72). `verify`

**1 Jul 2026** — **RBI Integrated Ombudsman Scheme 2026 replaces RB-IOS 2021**
Compensation up to Rs 30 lakh plus Rs 3 lakh (was Rs 20 lakh plus Rs 1 lakh); complaint within 90 days (was 1 year). Complaints filed before 1 Jul 2026 stay under the 2021 scheme. `verify`

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03 // IT ACT 2000

# Section table: offence, punishment, bail, compounding

s.77B: offences punishable with 3 years and above are cognizable; offences punishable with 3 years are bailable. s.77A: courts may compound offences except those punishable with life or over 3 years, enhanced punishment cases, offences affecting socio-economic conditions, or offences against a child under 18 or a woman. Investigation by an officer not below the rank of Inspector (s.78).

| SEC | OFFENCE / CONTRAVENTION | PUNISHMENT / REMEDY | COGNIZABLE / BAILABLE | COMPOUNDABLE |
|---|---|---|---|---|
| 43 CIVIL | Unauthorised access, download, virus, damage, disruption and more | Damages by way of compensation to the person affected (no upper cap in the section). Adjudicating Officer up to ₹5 crore claims, civil court above. | Not an offence | Contravention can be compounded under Sec 63 |
| 43A CIVIL | Body corporate negligent in protecting sensitive personal data | Damages by way of compensation. Still in force, with the SPDI Rules 2011, until DPDP Act s.44(2) omits it, 18 months from 13 Nov 2025 (about 13 May 2027). verify | Not an offence | Sec 63 |
| 65 OFFENCE | Tampering with computer source documents | Up to 3 years, or fine up to ₹2 lakh, or both | Bailable, cognizable | Yes (Sec 77A) |
| 66 OFFENCE | Computer related offences (Sec 43 acts done dishonestly or fraudulently) | Up to 3 years, or fine up to ₹5 lakh, or both | Bailable, cognizable | Yes (Sec 77A) |
| 66A ~~STRUCK~~ | Offensive messages | Struck down in Shreya Singhal (2015); omitted by Jan Vishwas Act from 30 Nov 2023. No one can be prosecuted (PUCL, 2022). | n/a | n/a |
| 66B OFFENCE | Dishonestly receiving stolen computer resource or device | Up to 3 years, or fine up to ₹1 lakh, or both | Bailable, cognizable | Yes (Sec 77A) |
| 66C OFFENCE | Identity theft (password, e-signature, unique ID) | Up to 3 years and fine up to ₹1 lakh | Bailable, cognizable | Yes, unless against a woman or child (Sec 77A) |
| 66D OFFENCE | Cheating by personation using a computer resource | Up to 3 years and fine up to ₹1 lakh | Bailable, cognizable | Yes, unless against a woman or child (Sec 77A) |
| 66E OFFENCE | Violation of privacy (images of private area without consent) | Up to 3 years, or fine up to ₹2 lakh, or both | Bailable, cognizable | Yes, unless against a woman or child (Sec 77A) |
| 66F OFFENCE | Cyber terrorism | Imprisonment which may extend to life | Non-bailable, cognizable | No |
| 67 OFFENCE | Publishing or transmitting obscene material electronically | First: up to 3 years and fine up to ₹5 lakh. Repeat: up to 5 years and fine up to ₹10 lakh | First: bailable. Repeat: non-bailable. Cognizable | First conviction only, and not if against a woman or child |
| 67A OFFENCE | Sexually explicit material | First: up to 5 years and fine up to ₹10 lakh. Repeat: up to 7 years and fine up to ₹10 lakh | Non-bailable, cognizable | No (over 3 years) |
| 67B OFFENCE | Child sexual exploitation and abuse material (CSEAM) | First: up to 5 years and fine up to ₹10 lakh. Repeat: up to 7 years and fine up to ₹10 lakh. Covers browsing, downloading and storing too (Just Rights for Children Alliance, 2024) | Non-bailable, cognizable | No |
| 67C(2) CIVIL | Intermediary fails to preserve and retain information | Penalty up to Rs 25 lakh (was 3 years and fine; Jan Vishwas, 30 Nov 2023) | Not an offence since Jan Vishwas | n/a |
| 68(2) CIVIL | Failing to comply with the Controller's order | Penalty up to Rs 25 lakh (was 2 years or Rs 1 lakh; Jan Vishwas) | Not an offence since Jan Vishwas | n/a |

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| SEC | OFFENCE / CONTRAVENTION | PUNISHMENT / REMEDY | COGNIZABLE / BAILABLE | COMPOUNDABLE |
|---|---|---|---|---|
| 69 OFFENCE | Failing to assist lawful interception, monitoring or decryption | Up to 7 years and fine | Non-bailable, cognizable | No |
| 69A OFFENCE | Intermediary not complying with a blocking direction | Up to 7 years and fine | Non-bailable, cognizable | No |
| 69B(4) OFFENCE | Intermediary fails to assist traffic-data monitoring | Up to 1 year, or fine up to Rs 1 crore, or both (was 3 years and fine; Jan Vishwas) verify | Non-cognizable, bailable (below 3 years; BNSS First Schedule Part II) [interpretation] | Yes (Sec 77A) |
| 70 OFFENCE | Unauthorised access to a notified protected system | Up to 10 years and fine | Non-bailable, cognizable | No |
| 70B(7) OFFENCE | Not complying with CERT-In directions (incl. the 2022 Directions) | Up to 1 year, or fine up to Rs 1 crore (was Rs 1 lakh), or both (Jan Vishwas) verify | Non-cognizable, bailable (below 3 years; BNSS First Schedule Part II) [interpretation] | Yes (Sec 77A) |
| 72 CIVIL | Breach of confidentiality by a person acting under powers of the Act | Penalty up to ₹5 lakh (was up to 2 years jail before 30 Nov 2023) | Not an offence since Jan Vishwas | n/a |
| 72A CIVIL | Disclosure of personal information in breach of lawful contract | Penalty up to ₹25 lakh (was up to 3 years jail or ₹5 lakh fine before 30 Nov 2023) | Not an offence since Jan Vishwas | n/a |
| 77A RULE | Compounding of offences | A court may compound offences other than those punishable with life or over 3 years. Not where enhanced punishment applies for a prior conviction, or the offence affects socio-economic conditions, or is against a child under 18 or a woman. 77A(2) still cites CrPC 265B/265C; the CrPC is repealed (BNSS s.531), so read as BNSS Ch. XXIII ss.289 to 300 (s.290 application, s.291 guidelines). verify | n/a | n/a |
| 77B RULE | Cognizable and bailable | Offences punishable with 3 years and above are cognizable; offences punishable with 3 years are bailable. s.77B is silent on bailability above 3 years: read with BNSS First Schedule Part II (non-bailable). verify | n/a | n/a |
| 79 RULE | Safe harbour for intermediaries | No liability for third-party content if the intermediary only provides access, does not initiate, select the receiver or modify, observes due diligence (IT Rules 2021), and acts on actual knowledge (court order or government notice, per Shreya Singhal). | n/a | n/a |
| 84B OFFENCE | Abetment | Same punishment as the offence abetted, if committed in consequence and no express provision exists | Follows the main offence | Follows the main offence |
| 84C OFFENCE | Attempt | Up to half of the longest term for the offence, or the fine for it, or both | Follows the term | Follows the term |

**Other Jan Vishwas changes (w.e.f. 30 Nov 2023):** s.33(2) now a penalty up to Rs 5 lakh; s.44 penalties raised to Rs 15 lakh, Rs 50,000 and Rs 1 lakh; s.45 penalty up to Rs 1 lakh plus compensation up to Rs 10 lakh (intermediary, company or body corporate) or Rs 1 lakh (others); s.46 now covers a "claim for damage" under this Act. **Verify notes:** non-bailable entries for offences above 3 years and cognizability below 3 years are interpretations of s.77B with the BNSS schedule (U4); the BNSS reading of 77A(2) is an interpretation (U3).

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04 // NEW CRIMINAL LAWS

# BNS / BNSS / BSA map and electronic evidence

BNS, BNSS and BSA came into force on 1 Jul 2024, replacing the IPC, CrPC and Indian Evidence Act. Offences committed before that date stay under the old codes. BNS s.106(2) (hit-and-run) was excluded from commencement.

4.1

## BNS (IPC) for cyber-enabled crime

| CONDUCT | BNS | IPC |
|---|---|---|
| Cheating (online fraud, UPI and investment scams) | 318 (318(4) for inducing delivery of property) | 415, 417, 418, 420 |
| Cheating by personation (fake profiles, fake officials) | 319 | 416, 419 |
| Extortion (sextortion, 'digital arrest' demands) | 308 | 383 to 389 |
| Defamation | 356 | 499 to 502 |
| Organised crime (definition expressly covers cyber-crimes) | 111 | New, no IPC equivalent |
| Petty organised crime | 112 | New |
| Forgery, including for cheating or harming reputation | 336 (336(3), 336(4)) | 463, 465, 468, 469 |
| Making a false document (includes electronic records) | 335 | 464 |

| CONDUCT | BNS | IPC |
|---|---|---|
| Criminal intimidation, incl. anonymous communication | 351 (351(4)) | 503, 506, 507 |
| Stalking (includes monitoring a woman's internet or email use) | 78 | 354D |
| Voyeurism | 77 | 354C |
| Sexual harassment | 75 | 354A |
| Statements conducing to public mischief (fake news) | 353 | 505 |
| Criminal breach of trust | 316 | 405 to 409 |
| Theft (devices, data carriers) | 303 | 378, 379 |
| Criminal conspiracy | 61 | 120A, 120B |

> **Higher punishments under BNS:** s.318(2) cheating up to 3 yrs (IPC 417: 1 yr); s.319(2) personation up to 5 yrs (IPC 419: 3 yrs); s.308(2) extortion up to 7 yrs (IPC 384: 3 yrs); s.356(2) defamation adds community service; s.318(4) up to 7 yrs and fine (as IPC 420). Where the IT Act specifically covers an electronic-record act, it prevails as the special law (Sharat Babu Digumarti, 2016).

4.2

## BNSS (CrPC) procedure

| PROVISION | BNSS | CRPC |
|---|---|---|
| FIR; electronic information, any area (Zero FIR); e-FIR signed within 3 days. 173(3): 3 to under 7 yrs, preliminary enquiry within 14 days with DSP permission. 173(4): refusal, send to the Superintendent of Police | 173 | 154 |
| Police power to investigate; 175(3) Magistrate order on an application with affidavit | 175 | 156 |
| Summons to produce document or electronic communication | 94 | 91 |
| Audio-video recording of search and seizure | 105 | New |
| Arrest without warrant | 35 | 41 |
| Statements before Magistrate | 183 | 164 |
| Anticipatory bail | 482 | 438 |
| Inherent powers of High Court | 528 | 482 |

4.3

## BSA (Evidence Act): electronic records

| PROVISION | BSA | IEA |
|---|---|---|
| Electronic records not to be denied admissibility as such | 61 | New |
| Contents of electronic records proved per s.63 | 62 | 65A |
| Admissibility of computer output; certificate | 63 | 65B |
| Opinion of Examiner of Electronic Evidence (IT Act s.79A) | 39(2) | 45A |

**65B TO BSA 63**

s.61 admits electronic records "subject to section 63". BSA 63 keeps the certificate and adds a Schedule format (Part A: filled by the party; Part B: filled by the expert; each records the hash value(s) and algorithm). **Anvar P.V.** (2014): certificate mandatory for secondary evidence; **Arjun Panditrao** (2020): condition precedent unless the original device is produced. `verify` application of these rulings to BSA 63 is still developing.

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05 // DATA PROTECTION

# DPDP Act 2023 and DPDP Rules 2025

NOT YET IN FORCE (1 NOV 2026)

Duties, rights, Board complaints (s.27), appeals (s.29) and penalties (s.33) apply only from 18 months after 13 Nov 2025, about 13 May 2027 `verify` (U1). Until then **IT Act s.43A and the SPDI Rules 2011 stay in force**: claim through the Adjudicating Officer (s.46) or a civil court.

5.1

## Key duties of a Data Fiduciary (from about May 2027)

- **Notice and consent** (ss.5, 6): consent must be free, specific, informed, unconditional and unambiguous; withdrawal as easy as giving it. Rule 3 sets notice content.
- **Legitimate uses** (s.7): limited processing without consent.
- **General obligations** (s.8): accuracy, reasonable security safeguards, breach notice, erasure when purpose ends, grievance redressal, DPO contact.
- **Breach intimation** (Rule 7): to each affected Data Principal without delay; to the Board without delay, and a detailed report within **72 hours**.
- **Logs** (Rule 6): keep logs of processing for at least **1 year**.
- **Erasure** (Rule 8, Third Schedule): large e-commerce, gaming and social media platforms erase after **3 years** of inactivity, with **48 hours** notice first.
- **Children** (s.9, Rule 10): verifiable parental consent; no tracking or targeted ads at children.
- **Significant Data Fiduciary** (s.10, Rule 13): DPO in India, independent auditor, DPIA and audit every 12 months.
- **Data Principal** rights (ss.11 to 14): access, correction and erasure, grievance, nominee. Grievances answered within **90 days** (Rule 14(3)); exhaust the grievance route before approaching the Board (s.13(3)). Duties (s.15).

5.2

## Penalty schedule (s.33, Schedule)

Penalties are imposed by the Data Protection Board after an inquiry, under Section 33 and the Schedule. They are maximum amounts, not fixed fines.

| BREACH | MAX PENALTY |
|---|---|
| Failing to take reasonable security safeguards to prevent a personal data breach (Sec 8(5)) | ₹250 crore |
| Failing to notify the Board or affected Data Principals of a breach (Sec 8(6)) | ₹200 crore |
| Additional obligations for children (Sec 9) | ₹200 crore |
| Additional obligations of a Significant Data Fiduciary (Sec 10) | ₹150 crore |
| Duties of a Data Principal (Sec 15) | ₹10,000 |
| Breach of a voluntary undertaking (Sec 32) | Up to the amount for the original breach |
| Any other provision of the Act or Rules | ₹50 crore |

5.3

## Commencement (G.S.R. 843(E), 13 Nov 2025)

| | |
|---|---|
| 13 Nov 2025 | Definitions, Data Protection Board (ss.18 to 26), rule-making. Rules 1, 2, 17 to 21. |
| +1 year | Consent managers (s.6(9), s.27(1)(d)); Rule 4. |
| +18 months | Most duties, rights and penalties (ss.3 to 17, 27 (except (1)(d)) to 34, 36, 37); Rules 3, 5 to 16, 22, 23; s.44(2) omits IT Act s.43A. About 13 May 2027 `verify` |

Appeal from the Board lies to the Appellate Tribunal (TDSAT) within 60 days (s.29(2)), once s.29 commences. Rules corrigendum: G.S.R. 892(E), 10 Dec 2025.

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06 // PLATFORMS AND INCIDENTS

# Intermediary Rules 2021 and CERT-In Directions 2022

6.1

## IT (Intermediary Guidelines and Digital Media Ethics Code) Rules 2021

G.S.R. 139(E), 25 Feb 2021; amended 2022, 2023, 22 Oct 2025 (G.S.R. 775(E), w.e.f. 15 Nov 2025) and 10 Feb 2026 (G.S.R. 120(E), in force 20 Feb 2026). Safe harbour under s.79 depends on this due diligence.

| DUTY | TIMELINE |
|---|---|
| Remove or disable unlawful content on actual knowledge: court order, or reasoned intimation from a Joint Secretary rank officer (DIG for police), Rule 3(1)(d) | 3 hours (was 36) |
| Complaint about intimate images, nudity or morphed / impersonating content, Rule 3(2)(b) | 2 hours (was 24) |
| Grievance Officer: acknowledge, then resolve, Rule 3(2)(a)(i) | 24 h / 7 days (was 15) |
| Removal requests under the Rule 3(1)(b) proviso | 36 hours (was 72) |
| Information or assistance to a lawfully authorised agency, Rule 3(1)(j) | 72 hours |
| Remind users of rules and consequences, Rule 3(1)(c) | Every 3 months |

SYNTHETIC MEDIA (2026)

'Synthetically generated information' (Rule 2(1)(wa)) must be clearly labelled and carry permanent metadata or an identifier that platforms must not let users strip. Significant social media intermediaries must take a user declaration and verify it with technical measures (Rule 4(1A)). Good-faith editing, accessibility and routine document work are excluded.

Kunal Kamra (Bom HC, 26 Sep 2024) struck down the 2023 Fact Check Unit amendment. The Union's appeal is pending in the Supreme Court: notice issued 10 Mar 2026, no stay, referred to a three judge bench.

6.2

## CERT-In Directions, 28 Apr 2022 (s.70B(6))

| DIRECTION | REQUIREMENT |
|---|---|
| Report listed cyber incidents (Annexure I) to CERT-In after noticing the incident or being told of it | 6 hours |
| Enable and keep logs of all ICT systems, within India | 180 days rolling |
| Sync clocks to NIC or NPL NTP (or traceable source) | Mandatory |
| Data centres, VPS, cloud and VPN providers keep validated subscriber records | 5 years |
| Designate a point of contact for CERT-In | Mandatory |

Applies to service providers, intermediaries, data centres, body corporates and government organisations. Effective 27 Jun 2022; MSMEs and subscriber-validation aspects extended to 25 Sep 2022. Report to incident@cert-in.org.in.

OVERLAPPING CLOCKS AFTER A BREACH

**CERT-In:** within 6 hours of noticing the incident or being told of it. **DPDP Board:** without delay, detail within 72 hours (once Rule 7 commences). **Sector regulators** (RBI, SEBI, IRDAI) have their own timelines. `verify` sector rules for the client.

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07 // PROCEDURE

# Procedure and forums

**01** **Report fast: 1930 and cybercrime.gov.in**
Call the National Cyber Crime Helpline 1930 as soon as money is lost, so the transaction can be flagged and frozen. File a complaint on the National Cyber Crime Reporting Portal (cybercrime.gov.in), which routes it to the state police.

**02** **FIR and investigation**
For cognizable offences (3 years and above under Sec 77B), the police must register an FIR under BNSS Section 173, which allows e-FIRs. IT Act offences are investigated by an officer not below the rank of Inspector (Sec 78). If police refuse to register: Superintendent of Police (BNSS 173(4)), then the Magistrate (BNSS 175(3), application with affidavit).

**03** **Compensation: Adjudicating Officer (Sec 46)**
For Sec 43, 43A and other contraventions, file before the Adjudicating Officer: an officer not below Director rank in the Government of India, or equivalent in the state (usually the state IT Secretary). Claims up to ₹5 crore; above that, the competent civil court. Check your state's notification for the officer and filing format.

**04** **Appeal: TDSAT (Sec 57)**
Appeal from the Adjudicating Officer or Controller lies to the Appellate Tribunal within 45 days. Since 26 May 2017 that is TDSAT, after the Cyber Appellate Tribunal was merged into it by the Finance Act, 2017.

**05** **High Court (Sec 62)**
Appeal from TDSAT to the High Court within 60 days, on any question of fact or law. The High Court can allow a further 60 days for sufficient cause.

**06** **Data breaches: CERT-In and the DPDP Board**
Organisations must report listed incidents to CERT-In within 6 hours (2022 Directions). Under the DPDP regime, personal data breaches are also notified to the Board and affected people once those duties commence.

`Victim` → `1930 / cybercrime.gov.in` → `FIR (BNSS 173)` → `Criminal court`

`Contravention (s.43, 43A)` → `Adjudicating Officer (s.46)` → `TDSAT, 45 days (s.57)` → `High Court, 60 days (s.62)`

`Personal data breach` → `Data Protection Board (from ~May 2027)` → `TDSAT, 60 days (DPDP s.29)`

BANK FRAUD: CUSTOMER LIABILITY

RBI (Commercial Banks: Responsible Business Conduct) Directions 2025 (28 Nov 2025), Ch. IV-D, paras 67 to 72, carry over the withdrawn 6 Jul 2017 circular. Reported within **3 working days**: zero liability. **4 to 7 days**: liability capped at Rs 5,000 / 10,000 / 25,000 by account type. Beyond 7 days: bank's Board policy. Shadow credit within **10 working days**; resolution within **90 days**. `verify` (U6: clause text from a mirror)

RBI OMBUDSMAN: RB-IOS 2026

In force **1 Jul 2026**, replacing RB-IOS 2021. Complain to the bank first; go to cms.rbi.org.in if there is no reply in **30 days** or the reply is unsatisfactory. File within **90 days**; award up to **Rs 30 lakh + Rs 3 lakh**; appeal within 30 days (+30). `verify`

Old 2021 limits (Rs 20 lakh + Rs 1 lakh, 1 year) apply only to complaints filed before 1 Jul 2026 `verify` (U5).

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08 // CASE LAW

# Landmark cases

### Shreya Singhal v Union of India — 2015

(2015) 5 SCC 1; AIR 2015 SC 1523 | Supreme Court of India (2 judge bench)

**FACTS** Writ petitions challenged Section 66A of the IT Act, which made it an offence to send 'grossly offensive' or 'menacing' messages, after several arrests over social media posts. The petitions also challenged Section 69A (website blocking) and Section 79 (intermediary liability) along with their rules.

**HELD** The Court struck down Section 66A in its entirety as violating Article 19(1)(a) and not saved by Article 19(2), finding its terms vague and overbroad. It upheld Section 69A and the Blocking Rules, and read down Section 79 so that 'actual knowledge' means a court order or a government notification.

**WHY IT MATTERS** It is the leading case on online free speech in India and on when intermediaries must take down content.

### Justice K.S. Puttaswamy (Retd) v Union of India — 2017

(2017) 10 SCC 1; AIR 2017 SC 4161 | Supreme Court of India (9 judge bench)

**FACTS** While hearing challenges to the Aadhaar scheme, a question arose whether the Constitution protects a fundamental right to privacy, given older rulings in M.P. Sharma and Kharak Singh. The issue was referred to a nine judge bench.

**HELD** The bench unanimously held that the right to privacy is a fundamental right protected as part of Article 21 and the freedoms in Part III, and overruled the earlier rulings to the extent they held otherwise. The opinions recognised informational privacy and said any intrusion must meet tests such as legality, legitimate aim and proportionality.

**WHY IT MATTERS** It is the constitutional foundation for data protection in India, including the DPDP Act 2023.

### Anvar P.V. v P.K. Basheer — 2014

(2014) 10 SCC 473; AIR 2015 SC 180 | Supreme Court of India (3 judge bench)

**FACTS** In an election petition, the appellant relied on CDs containing speeches and songs to allege corrupt practices by the returned candidate. The question was how electronic records must be proved in court.

**HELD** The Court held that secondary evidence of an electronic record is admissible only if it is accompanied by a certificate under Section 65B(4) of the Evidence Act, which is a special provision. It overruled State (NCT of Delhi) v Navjot Sandhu on this point.

**WHY IT MATTERS** It made the Section 65B certificate central to digital evidence; the equivalent rule now sits in Section 63 of the BSA 2023.

### Arjun Panditrao Khotkar v Kailash Kushanrao Gorantyal — 2020

AIR 2020 SC 4908 | Supreme Court of India (3 judge bench)

**FACTS** An election dispute turned on video recordings, and the party relying on them could not obtain a Section 65B certificate from the election officials. Conflicting Supreme Court rulings on whether the certificate is mandatory were referred to a larger bench.

**HELD** The Court reaffirmed Anvar P.V., holding that the Section 65B(4) certificate is a condition precedent for admitting secondary evidence of an electronic record, and overruled Shafhi Mohammad on this point. It clarified that no certificate is needed where the original device itself is produced, and that a court can direct the relevant person to produce the certificate.

**WHY IT MATTERS** It settled the certificate debate for digital evidence, a principle carried forward under Section 63 of the BSA 2023.

### Avnish Bajaj v State (Bazee.com case) — 2008

SC appeal: Aneeta Hada v Godfather Travels and Tours, (2012) 5 SCC 661 | Delhi High Court (S. Muralidhar J); appeal decided by the Supreme Court in 2012

**FACTS** A listing on Baazee.com offered for sale an obscene video clip involving school students, and the website company's Managing Director was prosecuted. He sought to quash the case under Sections 292 and 294 IPC and Section 67 of the IT Act.

**HELD** The Delhi High Court discharged him of the IPC offences because the IPC has no automatic vicarious liability for directors, but let the Section 67 read with Section 85 IT Act charge continue. In Aneeta Hada (2012), the Supreme Court held that the company must be arraigned for a director to be liable under Section 85, and quashed the proceedings in their existing form.

**WHY IT MATTERS** It shaped how platform executives can and cannot be prosecuted for user content and company offences under the IT Act.

### Google India Pvt Ltd v Visaka Industries — 2019

AIR 2020 SC 350 | Supreme Court of India (2 judge bench)

**FACTS** An asbestos sheet maker filed a criminal defamation complaint over articles posted in 2008 on a Google hosted group, alleging that Google did not remove them after notice. Google sought to quash the summons, relying on Section 79 of the IT Act.

**HELD** The Court held that Section 79 as it stood before the 2008 amendment protected intermediaries only against offences under the IT Act itself and did not cover IPC defamation, so the complaint was not barred on that ground. It dismissed Google's appeal and left the question of actual liability to be decided at trial.

**WHY IT MATTERS** It shows that intermediary safe harbour depends on the version of Section 79 in force at the time of the content.

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### Shamsher Singh Verma v State of Haryana 2015

(2016) 15 SCC 485; 2016 Cri LJ 364 | Supreme Court of India (2 judge bench)

**FACTS** In a criminal trial, the accused wanted to play a compact disc of a recorded conversation in his defence and have it examined by a forensic laboratory. The trial court and High Court refused his application.

**HELD** The Court held that a compact disc is a 'document' under the Evidence Act, and that admission or denial under Section 294 CrPC can be recorded through counsel or the public prosecutor. It allowed the defence to play the CD and send it for forensic examination.

**WHY IT MATTERS** It confirms that electronic media like CDs are documents and that the accused can use digital evidence in their defence.

### Anuradha Bhasin v Union of India 2020

AIR 2020 SC 1308 | Supreme Court of India (3 judge bench)

**FACTS** After August 2019, the internet and movement were restricted across Jammu and Kashmir, and a newspaper editor challenged the restrictions as affecting press freedom. The orders imposing the restrictions had not been published.

**HELD** The Court held that freedom of speech and the freedom to carry on trade or business through the internet are constitutionally protected under Articles 19(1)(a) and 19(1)(g), so restrictions on them must be necessary and proportionate. It held that indefinite internet suspension is not permissible, that suspension orders must be published and periodically reviewed, and directed a review of the orders.

**WHY IT MATTERS** It set the constitutional tests for internet shutdowns in India.

### State of Tamil Nadu v Suhas Katti 2004

C.C. No. 4680 of 2004, Addl. Chief Metropolitan Magistrate, Egmore (unreported; no official online text) `verify` | Additional Chief Metropolitan Magistrate, Egmore, Chennai (trial court)

**FACTS** The accused posted obscene and defamatory messages about a woman in a Yahoo message group and sent emails through a fake account opened in her name, which led to harassing calls to her. The Chennai Cyber Crime Cell investigated, and a charge sheet was filed under Section 67 of the IT Act and Sections 469 and 509 IPC.

**HELD** The trial court, relying on electronic evidence, convicted the accused under Section 67 of the IT Act and Sections 469 and 509 IPC `verify`. It is widely reported as one of the first convictions under the IT Act; the judgment is not available on official sites and details come from secondary reports.

**WHY IT MATTERS** It is often cited as an early example of quick investigation and conviction in an online harassment case using digital evidence.

### Sharat Babu Digumarti v Govt of NCT of Delhi 2016

(2017) 2 SCC 18; AIR 2017 SC 150 | Supreme Court of India

**FACTS** Arising from the same Bazee.com listing of an obscene clip, a senior manager of the website company faced trial under Section 292 IPC after the Section 67 IT Act charge did not proceed against him. He challenged the framing of the IPC charge.

**HELD** The Court held that the IT Act is a special law and that, read with Sections 79 and 81, its provisions on obscenity in electronic form prevail over the general IPC offence. It quashed the Section 292 IPC prosecution against him.

**WHY IT MATTERS** It established that offences involving electronic records should generally be dealt with under the IT Act as a special law.

### MySpace Inc v Super Cassettes Industries Ltd 2016

FAO(OS) 540/2011; 2016:DHC:8178-DB | Delhi High Court (Division Bench)

**FACTS** T Series owner Super Cassettes sued MySpace for copyright infringement over user uploaded songs and films, and a single judge granted a broad injunction against hosting its works. MySpace appealed against that interim order.

**HELD** The Division Bench held that Section 79 safe harbour is available to intermediaries in copyright cases if they meet due diligence conditions, and that liability under Section 51(a)(ii) of the Copyright Act needs actual knowledge of specific infringement, not general awareness. It set aside the broad injunction and required the rights owner to give specific notices identifying infringing content for removal.

**WHY IT MATTERS** It is a key ruling on notice and takedown and platform liability for user uploaded copyrighted content.

### Kunal Kamra v Union of India (Fact Check Unit case) 2024

WP (L) No. 9792 of 2023; 2024:BHC-OS:14750-DB | Bombay High Court (Division Bench, after a split verdict and the opinion of a third judge, A.S. Chandurkar J)

**FACTS** A 2023 amendment to Rule 3(1)(b)(v) of the IT Rules 2021 let a government Fact Check Unit identify online content about the business of the Central Government as fake, false or misleading, with consequences for intermediaries. Kunal Kamra and media bodies challenged it, and a two judge bench delivered a split verdict in January 2024.

**HELD** The third judge agreed that the rule violated Articles 14, 19(1)(a) and 19(1)(g), was ultra vires the IT Act and was vague and overbroad, and on 26 September 2024 the Division Bench struck down the amendment. Supreme Court records show an appeal by the Union of India in which notice has been issued; check its current status `verify`.

**WHY IT MATTERS** It limits the government's power to declare online content false through its own unit and protects intermediaries from that chilling effect.

PUCL v Union of India (SC order, 12 Oct 2022): no prosecution under the struck-down s.66A. Just Rights for Children Alliance v S. Harish (SC, 2024): viewing, storing or possessing CSEAM is punishable under POCSO s.15 and IT Act s.67B. POCSO s.11 covers sexual harassment of a child through electronic or digital means; s.15 as substituted by the 2019 amendment (in force 16 Aug 2019) `verify` (U2).

## 09 // EXAM MODE

# Quick revision

Cover the right column and test yourself. Short answers you can write in an exam or say in court.

| | | |
|---|---|---|
| Q01 | **Civil remedy for unauthorised access?** | IT Act s.43: compensation; no intent needed; AO under s.46 up to Rs 5 crore. |
| Q02 | **When does s.43 conduct become a crime?** | s.66: when done dishonestly or fraudulently. Up to 3 yrs, or fine up to Rs 5 lakh, or both. |
| Q03 | **Cognizable and bailable rule under the IT Act?** | s.77B: 3 yrs and above cognizable; 3 yrs bailable. |
| Q04 | **Which IT Act offences cannot be compounded?** | s.77A: life or over 3 yrs, enhanced punishment, socio-economic, or against a woman or child under 18. |
| Q05 | **Punishment for cyber terrorism?** | s.66F: imprisonment which may extend to life. Non-bailable. |
| Q06 | **Protected system intrusion?** | s.70(3): up to 10 years and fine. |
| Q07 | **Status of s.66A?** | Struck down in Shreya Singhal (2015); omitted by Jan Vishwas Act w.e.f. 30 Nov 2023. |
| Q08 | **s.72 and 72A after Jan Vishwas?** | Now penalties: up to Rs 5 lakh (s.72) and Rs 25 lakh (s.72A). |
| Q09 | **Who investigates IT Act offences?** | Police officer not below the rank of Inspector (s.78). |
| Q10 | **Electronic evidence certificate now?** | BSA s.63 (was IEA 65B). Anvar P.V.; Arjun Panditrao Khotkar. |
| Q11 | **Appeal from Adjudicating Officer?** | TDSAT within 45 days (s.57); then High Court within 60 days (s.62). |
| Q12 | **Highest DPDP penalty?** | Up to Rs 250 crore: failing reasonable security safeguards (s.8(5)). |
| Q13 | **CERT-In incident reporting window?** | Within 6 hours of noticing the incident or being told of it; logs 180 days in India. |
| Q14 | **Takedown for intimate or morphed images?** | 2 hours from complaint (IT Rules 3(2)(b), as amended 2026); court or government order: 3 hours. |
| Q15 | **FIR from anywhere, by email or online?** | BNSS s.173: any area (Zero FIR); e-information signed within 3 days. Refusal: Superintendent of Police (173(4)). |
| Q16 | **Online cheating under BNS?** | s.318 (IPC 420); s.318(2) up to 3 yrs (IPC 417: 1); personation s.319(2) up to 5 yrs; extortion s.308(2) up to 7 yrs; organised cyber-crime s.111. |
| Q17 | **Is s.43A still in force?** | Yes, with the SPDI Rules 2011, until DPDP s.44(2) commences (about 13 May 2027). |
| Q18 | **RBI Ombudsman now?** | RB-IOS 2026 from 1 Jul 2026: file within 90 days; up to Rs 30 lakh + Rs 3 lakh. |
| Q19 | **Privacy as a fundamental right?** | Puttaswamy (2017), 9 judges, Art. 21. |
| Q20 | **Intermediary 'actual knowledge'?** | Court order or government notification (Shreya Singhal; s.79(3)(b)). |

> **Memory hooks:** `43 = pay, 66 = jail | 3 yrs = bailable | 6 h CERT-In, 72 h Board, 3 h takedown, 2 h intimate images, 7 d grievance | 45 days TDSAT, 60 days HC | 65B is now BSA 63`

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## 10 // GLOSSARY

# Glossary

**Electronic record** `IT Act 2000 s.2(1)(t)`
Any data, record, image or sound that is generated, stored, received or sent in electronic form, such as emails, chats, CCTV footage or server logs.

**Intermediary** `IT Act 2000 s.2(1)(w)`
A person or platform that receives, stores or transmits electronic records on behalf of others, such as telecom companies, ISPs, social media platforms, search engines and marketplaces.

**Safe harbour** `IT Act 2000 s.79`
Protection from liability that an intermediary gets for third-party content it hosts, provided it follows due diligence and acts on lawful takedown orders or court directions.

**Data fiduciary** `DPDP Act 2023 s.2(i)`
A person or organisation that, alone or with others, decides the purpose and means of processing personal data, for example a bank, hospital, app or employer.

**Data principal** DPDP Act 2023 s.2(j)
The individual to whom the personal data relates; for a child or a person with a disability, this includes the parent or lawful guardian.

**Consent manager** DPDP Act 2023 s.2(g)
A person registered with the Data Protection Board who acts as a single point of contact to help data principals give, manage, review and withdraw consent through an accessible platform.

**Hash value** General term (also required in the BSA 2023 Schedule certificate under s.63(4)(c))
A fixed-length digital fingerprint (for example SHA-256) calculated from a file or disk; if even one bit changes, the hash changes, which helps prove evidence was not altered.

**Chain of custody** General term
A documented record of who collected, handled, transferred and stored a piece of evidence, and when, so that its integrity can be shown in court.

**Section 65B / BSA s.63 certificate** BSA 2023 s.63 (old Indian Evidence Act 1872 s.65B)
A certificate that must accompany electronic evidence to make it admissible, identifying the record, the device and how it was produced; it was required under Section 65B of the old Evidence Act and now under BSA Section 63 with a Schedule format that includes hash values.

**CERT-In** IT Act 2000 s.70B
The Indian Computer Emergency Response Team, the national agency for responding to cyber security incidents, issuing alerts and giving directions on incident reporting and security practices.

**Blocking order** IT Act 2000 s.69A; IT (Procedure and Safeguards for Blocking for Access of Information by Public) Rules 2009 verify
A direction by the Central Government to an intermediary or government agency to block public access to specific online content on grounds such as sovereignty, security of the State or public order, following a prescribed procedure.

**Adjudicating officer** IT Act 2000 s.46
An officer appointed under the IT Act to decide claims for compensation and penalties for contraventions such as unauthorised access under Section 43, within the monetary limits set in the Act.

**Cognizable offence** BNSS 2023 s.2(1)(g) (old CrPC s.2(c)); IT Act 2000 s.77B
An offence for which police can arrest without a warrant and start investigating without a Magistrate's order; under the IT Act, offences carrying three years' imprisonment and above are cognizable.

**Compoundable offence** BNSS 2023 s.359 (old CrPC s.320); IT Act 2000 s.77A
An offence that can be settled between the parties, with or without the court's permission, leading to acquittal; the IT Act allows courts to compound certain offences with exceptions.

**Phishing** General term (offences may fall under IT Act 2000 s.66C, s.66D)
A fraud technique where messages, emails, calls or fake websites pretend to be a trusted source to trick people into revealing passwords, OTPs or financial details.

**Spoofing** General term
Faking the identity of a sender, such as a caller ID, email address, website or IP address, so that a message appears to come from someone trusted.

**SIM swap** General term (offences may fall under IT Act 2000 s.66C, s.66D)
A fraud where a criminal gets a duplicate SIM for the victim's mobile number, often using fake documents or social engineering, to receive OTPs and take over bank or other accounts.

**Digital signature** IT Act 2000 s.2(1)(p); s.3
Authentication of an electronic record using an asymmetric cryptosystem and hash function, backed by a Digital Signature Certificate issued by a licensed Certifying Authority.

**Electronic signature** IT Act 2000 s.2(1)(ta); s.3A
A broader, technology-neutral term for authenticating an electronic record by reliable techniques listed in the Second Schedule, including digital signatures and Aadhaar-based eSign.

**Certifying authority** IT Act 2000 s.2(1)(g); s.17; s.24
An entity licensed by the Controller of Certifying Authorities to issue electronic signature or Digital Signature Certificates.

**Significant data fiduciary** DPDP Act 2023 s.2(z); s.10
A data fiduciary notified by the Central Government based on factors like volume and sensitivity of data and risk to rights, which must meet extra obligations such as appointing a Data Protection Officer and running audits and impact assessments.

**Data Protection Board of India** DPDP Act 2023 s.2(c); s.18; s.27
The body set up under the DPDP Act to inquire into personal data breaches and complaints against data fiduciaries and consent managers, and to impose penalties.

**Personal data breach** DPDP Act 2023 s.2(u); s.8(6)
Any unauthorised processing, accidental disclosure, acquisition, sharing, alteration, destruction or loss of access to personal data that compromises its confidentiality, integrity or availability; data fiduciaries must intimate such breaches to the Board and affected persons.

**Reasonable security practices** IT Act 2000 s.43A; SPDI Rules 2011 r.8; DPDP Act 2023 s.44(2)(a)
Security practices and procedures a body corporate handling sensitive personal data must implement, such as a documented information security programme; the IT Act compensation provision on this is set to be omitted by the DPDP Act once that amendment takes effect.

**Sensitive personal data or information** SPDI Rules 2011 r.3
Under the 2011 IT Rules, personal information such as passwords, financial details, health and medical records, sexual orientation and biometric information.

**Grievance officer** IT Rules 2021 r.3(2); SPDI Rules 2011 r.5(9)
An officer whom intermediaries and body corporates must designate and publish contact details for, to receive and resolve user complaints within the timelines set in the rules.

**Due diligence (intermediary)** IT Act 2000 s.79(2)(c); IT Rules 2021 r.3(1)
The obligations intermediaries must follow to keep safe harbour, such as publishing rules and privacy policies, acting on court or government orders and informing users not to share unlawful content.

**Forensic image** General term
A bit-by-bit copy of a storage device, including deleted and unallocated space, made so analysis can be done on the copy while the original stays untouched; its hash is recorded to prove it matches.

**Write blocker** General term
A hardware or software tool that lets investigators read a storage device without writing any data to it, preserving the original evidence.

**Metadata** General term
Data about data, such as a file's creation date, author, device model, GPS location in a photo or email header details, often crucial in establishing timelines.

**IP address and log retention** IT Act 2000 s.67C; CERT-In Directions dated 28.04.2022 under IT Act s.70B(6)
An IP address identifies a device or connection on a network, and logs record activity linked to it; intermediaries must preserve certain information, and CERT-In directions require covered entities to maintain ICT system logs for a rolling 180 days within India.

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**Digital arrest** General term (offences may fall under BNS 2023 s.204, s.308, s.318, s.319; IT Act 2000 s.66D)
A scam, not a legal procedure, in which fraudsters pose as police, CBI, customs or other officials on video calls, falsely claim the victim is under 'arrest' and pressure them to transfer money.

**Deepfake** IT (Intermediary Guidelines and Digital Media Ethics Code) Amendment Rules 2026
Audio, video or images created or altered with AI to realistically show a person saying or doing something they did not; the IT Rules now regulate this as 'synthetically generated information'.

**Identity theft** IT Act 2000 s.66C
Fraudulently or dishonestly using another person's electronic signature, password or other unique identification feature.

**Cheating by personation** IT Act 2000 s.66D; BNS 2023 s.319 (old IPC s.416, s.419)
Cheating someone by pretending to be another person, including by using a computer resource or communication device, such as fake customer care or fake profiles.

**Sextortion** General term (offences may fall under IT Act 2000 s.66E, s.67, s.67A; BNS 2023 s.308, s.351)
Threatening to publish intimate or morphed images or videos of a person unless they pay money or provide more content or favours.

**Malware and ransomware** IT Act 2000 s.43 Explanation (computer contaminant, computer virus); s.43; s.66
Malware is any software designed to damage systems, steal data or gain unauthorised access, and ransomware is malware that encrypts or locks data and demands payment to restore it; the IT Act uses the terms 'computer contaminant' and 'computer virus'.

**e-FIR and Zero FIR** BNSS 2023 s.173(1) (old CrPC s.154)
A Zero FIR can be lodged at any police station regardless of where the offence happened, and information can be given by electronic communication, which is taken on record once signed by the informant within three days.

**Cyber Appellate Tribunal and TDSAT** IT Act 2000 s.48 (as amended by Finance Act 2017 s.169); DPDP Act 2023 s.29; DPDP Act 2023 s.44(1)
Appeals against IT Act adjudicating officer orders originally went to the Cyber Appellate Tribunal, which was merged into the Telecom Disputes Settlement and Appellate Tribunal (TDSAT) by the Finance Act 2017; TDSAT is also the appellate tribunal under the DPDP Act.

**I4C and 1930 helpline** General term (MHA initiative, no specific statute)
The Indian Cyber Crime Coordination Centre is a Ministry of Home Affairs initiative that coordinates action against cybercrime and runs the National Cyber Crime Reporting Portal (cybercrime.gov.in) and the 1930 helpline for reporting financial cyber fraud.

## 11 // SOURCES

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